

Smt Deepika W/O Shivaprakash Hiremath vs Shri Shivaprakash S/O Shadaxarayya ... on 16 November, 2023

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NC: 2023:KHC-D:13303

CP No. 100147 of 2023

IN THE HIGH COURT OF KARNATAKA,
DHARWAD BENCH

DATED THIS THE 16TH DAY OF NOVEMBER, 2023

BEFORE

THE HON'BLE MRS JUSTICE K.S.HEMALEKHA

CIVIL PETITION NO.100147 OF 2023

BETWEEN:

SMT. DEEPIKA W/O SHIVAPRAKASH HIREMATH,
AGE. 38 YEARS, OCC. NIL,
R/O. C/O. DOOR NO. 437, VIDWAN J.M. RACHAIAH
MALEMATH, SRI. M. VISHWESHWARAYYA LAYOUT,
II BLOCK, 100 FEET ROAD, KENGERI UPNAGAR,
BENGALURU-560060.

...PETITIONER

(BY SRI. SUHAS K. HOSAMANI, ADVOCATE)

AND:

SHRI SHIVAPRAKASH S/O SHADAXARAYYA HIREMATH

AGE. 40 YEARS, OCC. PVT. SERVICE,

R/O. PLOT NO.48, DHAVALASHREE, KUMARESHWAR

NAGAR, 2ND CROSS, DHARWAD TQ. DHARWAD,

DIST. DHARWAD, PIN-580008.

...RESPONDENT

(BY SRI. S. N. BANAKAR, ADVOCATE)

THIS CIVIL PETITION IS FILED U/SEC.24 OF CPC,
PRAYING TO DIRECTION OR ORDER, ORDERING TO TRANSFER

THE PROCEEDINGS IN MATRIMONIAL CASE NO. 94/2023
PENDING ON THE FILE OF THE PRINCIPAL JUDGE, FAMILY
COURT, DHARWAD TO FAMILY COURT, BENGALURU, IN THE
INTEREST OF JUSTICE AND EQUITY.

THIS CIVIL PETITION, COMING ON FOR ADMISSION,
THIS DAY, THE COURT MADE THE FOLLOWING:

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ORDER

The present petition by the wife seeking to withdraw M.C. No.94/2023 pending on the file of the Prl. Judge, Family Court, Dharwad and transfer it to the Family Court, Bengaluru.

2. It is averred in the petition that the petitioner and the respondent are husband and wife and their marriage was solemnized on 13.02.2020 at Lingayat Bhavan, C.B. Nagar, Haliyal Road, Dharwad as per the Hindu rituals prevailing in their community. Due to un-cordial relationship between the petitioner and the respondent, they are living separately. It appears that the respondent - husband has filed petition in M.C. No.94/2023 under Section 13(1)(ia) & (ib) of the Hindu Marriage Act, 1955 before the Prl. Judge, Family Court at Dharwad seeking divorce.

3. Heard Shri suhas K.Hosamani, learned counsel appearing for the petitioner and Shri S.N. Banakar, learned counsel appearing for the respondent.

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4. Learned counsel appearing for the petitioner submits that the petitioner is residing at Bengaluru and the travel distance between Bengaluru to Dharwad to participate in the proceedings initiated by the husband in M.C. No.94/2023 pending on the file of the Prl. Judge, Family Court, Dharwad is around 450 kms. and which is overnight journey, causing inconvenience to the wife. It is further contended that initially the petitioner was placed exparte in the proceedings in M.C. No.94/2023 and subsequently the exparte order was set aside and she has tendered her appearance. This is one of the instance, which clearly evidence that the petitioner wife was unable to attend the proceedings before the Family Court at Dharwad.

5. Per contra, learned counsel appearing for the respondent in addition to the grounds urged in the statement of objections would contend that the petitioner can very well travel from Bengaluru to Dharwad and she has not made out any ground for transfer.

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6. Learned counsel appearing for the respondent submits that at all time the convenience of the wife should not be looked into but the convenience of the husband also should be taken into consideration when transfer is sought by the wife under Section 24 of the CPC.

7. Learned counsel for the respondent would contend that the respondent is working in a private service, in the event he is made to travel from Dharwad to Bengaluru, he would be losing his salary and also that he has got aged parents who have to be looked after, inconvenience would be more to the husband than the inconvenience to the wife and sought for dismissal of the petition.

8. This Court has carefully considered the rival contentions of the learned counsel appearing for the parties and perused the material available on record.

9. The fact that the wife is residing at Bengaluru is not disputed by the husband. It is also not in dispute that NC: 2023:KHC-D:13303 in the petition, M.C. No.94/2023 filed by the husband, the wife was placed *ex parte* by an order dated 24.05.2023, as is evident from the order sheet produced along with the petition. This clearly evidences that the petitioner was unable to make her appearance when the notice was ordered by the Family Court at Dharwad. The justice demands that when the wife seeks transfer, convenience of the wife is to be looked and in the present circumstance, the wife is residing at Bengaluru and the travel distance between Bengaluru and Dharwad is around 450 Kms. which is an overnight journey and it is highly inconvenient for the petitioner to travel all the way to attend the proceedings initiated by the husband at Dharwad.

10. Section 24 of CPC enumerates this Court to exercise the power to transfer the petition, suit, appeal or other proceedings where justice demands. In transfer petition, where the transfer is sought by the wife, the convenience of wife needs to be considered as held by the Apex Court in catena of judgments in line. The Apex Court NC: 2023:KHC-D:13303 in the case of Sumita Singh Vs. Kumar Sanjay and another¹ has held that convenience of the wife must be looked into.

11. The Apex Court in the recent decision, in the case of N.C.V. Aishwarya vs. A.S.Saravana Karthik Sha² has held that at paragraph No.9, which reads as under:

"9. The cardinal principle for exercise of power under Section 24 of the Code of Civil Procedure is that the ends of justice should demand the transfer of the suit, appeal or other proceeding. In matrimonial matters, wherever Courts are called upon to consider the plea of transfer, the Courts have to take into consideration the economic soundness of both the parties, the social strata of the spouses and their behavioural pattern, their standard of life prior to the marriage and subsequent thereto and the circumstances of both the parties in eking out their livelihood and under whose protective umbrella they are seeking their sustenance to life. Given the prevailing socio- economic paradigm in the Indian society, generally, it is the wife's convenience which must be looked at while considering transfer."

12. In the instant case, the petitioner is a lady aged about 38 years, residing at Bengaluru. The travel distance from Bengaluru to Dharwad is around 450 Kms., which is AIR 2002 SC 396 2022 SCC

OnLine SC 119 NC: 2023:KHC-D:13303 an overnight journey causing inconvenience to the petitioner-wife to attend the proceedings initiated by the husband at Dharwad.

13. For the aforesaid reasons, this Court is of the considered view that the petition filed by the wife needs to be allowed. Accordingly, this Court pass the following:

ORDER

(i) The civil petition is allowed.

(ii) M.C. No.94/2023 pending on the file of the Prl. Judge, Family Court, Dharwad is withdrawn and the same is transferred to the Family Court, Bengaluru.

Sd/-

JUDGE VNP / CT: UMD